when tribesmen from the NWFP were mobilized to join the fight in Kashmir. Although a small number of soldiers were with them, the Pakistan army was not deployed at this time.[2] Notably, the government invited religious scholars to issue fatwas [Islamic religious opinions] declaring this incursion a jihad and Pakistan described the tribesmen, as well as the soldiers assisting them, as mujahideen.[3]

Pakistan's aim at this stage was to internationalize the conflict and thus create a situation in which the Maharaja would be forced to accept a plebiscite.[4] One of the motives for using proxies, rather than deploying the army, was to avoid engendering an Indian military response. However, as reports of the gains made by the tribesmen reached India, its defense committee began discussing the provision of military assistance to the Maharaja. Lord Mountbatten insisted that the deployment of aid was dependent on Kashmir's accession to India.[5] While there is no question that Hari Sing signed a formal letter of accession to India, whether he did so before India mobilized its troops is another source of controversy. In either case, India deployed troops to Kashmir and Pakistan soon followed suit. The two countries were now at war. Fighting continued until a ceasefire was signed on 1 January 1949, by which time Pakistan controlled roughly one third of the former princely state and India the other two thirds with a ceasefire line separating their respective territories. Small pieces of land have changed hands since 1949, but this division remains the case today.[6] Pakistan controls Azad Jammu and Kashmir, or Pakistan-administered Kashmir, and Gilgit-Baltistan, formerly the Northern Areas. Indian-administered Kashmir consists of the Kashmir Valley, Jammu and Ladakh.

Pakistan did not incorporate the land it controlled, but rather treated it as administered territory. Thus if a referendum were ever held in the former princely state then Muslims living in the territory under Pakistani control would be able to participate. The government put measures in place to ensure the population remained on record as favoring accession. Pakistan-administered Kashmir has a separate government, but candidates must declare that they favor accession otherwise they are not allowed to contest elections.[7] It also has its own constitution, which stipulates that 'no person or political party in Azad Jammu and Kashmir shall be permitted to propagate against, or take part in activities prejudicial or detrimental to, the ideology of the State's [Kashmir] accession to Pakistan.'[8] A similar